

Court No. - 3

Case :- WRIT - C No. - 7192 of 2024

Petitioner :- Shiv Shankar Alias Shiv Shankar Awasthi
And Another

Respondent :- State Of U.P. Thru. Prin. Secy. Energy
Deptt. , Lko. And 6 Others

Counsel for Petitioner :- Atul Kumar, Harish Chandra

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

Heard learned counsel for the petitioners and learned Standing Counsel for State-respondents no. 1 and 3. Ms. Aprajita Bansal, learned counsel appearing on behalf of opposite parties no.2,4,5 and 6.

Issue notice to opposite party no.7, brother of petitioner no.1.

Learned counsel for the petitioners shall take steps within a week.

List this matter on 03.10.2024 within top ten cases.

In the meantime, pleadings be exchanged between the parties.

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(Brij Raj Singh, J.) (Sangeeta Chandra, J.)

Order Date :- 22.8.2024

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After hearing the learned counsel for the parties for some length we find that the petitioners are residing in a house that they have allegedly constructed over land belonging to the opposite party no.7.

The opposite party no.7 is real brother of petitioner no.1 and it is alleged that he had given oral permission to the petitioner to construct his house over the land belonging to the opposite party no.7 and to take an electricity connection.

The petitioner no.1 had built a house in 2013 and he was residing in the house with electricity connection in the name of his brother opposite party no.7.

The petitioner got the said electricity connection also transferred in his name on 10.4.2024, however, his brother the opposite party no.7 has now sold off the property to some third person who has given an application saying that he is legal owner of the land on which the house of the petitioner has been constructed and in pursuance thereof the respondents have disconnected the electricity connection.

The petitioner has already filed a civil suit against his brother namely R.S. No.875/23 [Smt. Meera Awasthi vs. Kripa Shankar Awasthi & Others] which is pending before the competent Court for adjudication.

The respondent-Madhyanchal Vidyut Vitran Nigam Limited has, however, not restored electricity connection in favour of the petitioner, even though he has a connection in his name only because of application made by one private person who is alleged to have bought the land from the brother of the petitioner – opposite party no.7.

Ms. Aprajita Bansal has on the basis of the instructions stated that petitioner can establish himself as 'occupier' of the premises by giving an indemnity bond to the Executive Engineer of the Distribution Division concerned and then his case for reconnection of electricity shall be considered.

This petition is disposed of with the liberty to the petitioner to file an appropriate application under para 4.3 of the Electricity Supply Code before the opposite party no.5 who shall take a decision after giving opportunity of hearing to the opposite party no.7 and to the purchaser of the property from the opposite party no.7.

Order Date :- 3.10.2024

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